

25STCV19056 25STCV19056

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Case Number: 25STCV19056 Hearing Date: August 18, 2026 Dept: 617

Dept.

617

Date:

8-18-26

Case

#: 25STCV19056

Trial

Date: None Set

DEMURRER WITH MOTION TO STRIKE

MOVING

PARTY: Defendant, Larchmont Schools

RESPONDING

PARTY: Plaintiffs, H.H., by and through his Guardian ad Litem, Ah Rum Choi, and R.J. and J.J., by and through their Guardian ad Litem, Innam Jeong

RELIEF

REQUESTED

Demurrer

to Second, Third, and Fourth Causes of Action in Complaint

Motion

to Strike

SUMMARY OF ACTION

Plaintiffs

H.H., R.J., and J.J. attended Larchmont Schools. They allege they were bullied by their classmates and Larchmont and LAUSD failed to take protective measures despite complaints from their parents. They claim that Larchmont's failure to take remedial action was substantially motivated by Plaintiffs' race. H.H., by and through his Guardian ad Litem, Ah Rum Choi, R.J., by and through his Guardian ad Litem, Innam Jeong, and J.J., by and through his Guardian ad Litem, Innam Jeong bring claims against Larchmont and LAUSD for negligence and negligent hiring, retention, training, and supervision. They also assert causes of action against Larchmont for intentional infliction of emotional distress, violation of the Bane Act, and discrimination in education.

RULING

Demurrer: Sustained in part.

Defendant Larchmont demurs

to the second, third, and fourth causes of action in Plaintiffs' complaint for negligent hiring, retention, training, and supervision, intentional infliction of emotional distress, and violation of the Bane Act. It argues that the negligent hiring claim is duplicative of the negligence cause of action and that Plaintiffs fail to allege facts sufficient to state their emotional distress and Bane Act claims. Plaintiffs oppose the demurrer, denying the negligent hiring claim is duplicative and maintaining the sufficiency of the allegations in support of the other claims. Defendant's demurrer is overruled as to the negligent hiring and emotional distress claims and sustained without leave to amend as to the Bane Act claim.

A

demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The purpose of a demurrer is to challenge the sufficiency of a pleading "by raising questions of law." (*Postley v. Harvey* (1984) 153 Cal.App.3d 280, 286.) "In the construction of a

pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties.” (Code Civ. Proc., § 452.) The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law” (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 525.) In applying these standards, the court liberally construes the complaint to determine whether a cause of action has been stated. (Picton v. Anderson Union High School Dist. (1996) 50 Cal.App.4th 726, 733.) “If the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer.” (Quelimane Co. v. Stewart Title Guaranty Co. (1998) 19 Cal.4th 26, 38.)

Second

Cause of Action: Negligent Hiring, Retention, Training, and Supervision

The

demurrer to the negligent hiring claim is overruled. Defendant argues that this claim is subject to demurrer because it is duplicative of the first cause of action for negligence. However, duplication is not grounds for demurrer. (Code Civ. Proc., § 430.10; Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC (2008) 162 Cal.App.4th 858, 890; but see Palm Springs Villas II Homeowners Assn., Inc. v. Parth (2016) 248 Cal.App.4th 268, 290 [sustaining demurrer to duplicative cause of action].) In any event, the claims are not duplicative because the first cause of action seeks to hold Defendant liable for its alleged failure to supervise its students, while the negligent hiring claim seeks recovery for Defendant’s alleged negligent supervision and retention of “unfit and incompetent” staff despite reports from the parents. [Compl. ¶¶ 24-28.] The demurrer to this claim is thus overruled.[1]

Third

Cause of Action: Intentional Infliction of Emotional Distress

Defendant

argues that Plaintiffs’ intentional infliction of emotional distress claim fails because there are no allegations that the staff’s failure to intervene to protect Plaintiffs was done with the purpose of causing them emotional distress.

The

elements of an intentional infliction of emotional distress claim are: “(1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff’s suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant’s outrageous conduct....” (Christensen v. Superior Court (1991) 54 Cal.3d 868, 903.)

“Conduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community.” (Id. at p. 903.)

Plaintiffs

have sufficiently alleged Defendant’s reckless disregard of the probability of causing Plaintiffs’ emotional distress. They allege that despite knowledge of the abuse Plaintiffs were experiencing from other classmates, Defendant’s staff “disregarded the bullying reports” and intentionally failed to protect Plaintiffs because they are Korean. [Compl. ¶¶ 31-32.] In doing so, they recklessly disregarded the probability that their inaction would continue to subject Plaintiffs to abuse and cause them emotional distress as a result. The demurrer to this claim is therefore overruled.

Fourth

Cause of Action: Violation of Bane Act

Defendant

argues that Plaintiffs’ Bane Act claim fails because they do not allege that Defendant interfered with their rights through “threat, intimidation, or coercion.” Plaintiffs respond that Defendant is liable as an aider and abettor of the abusing students.

“The

essence of a Bane Act claim is that the defendant, by the specified improper means (i.e., ‘threats, intimidation or coercion’), tried to or did prevent the plaintiff from doing something he or she had the right to do under the law or to force the plaintiff to do something that he or she was not required to do under the law.” (Austin B. v. Escondido Union School Dist. (2007) 149 Cal.App.4th 860, 883; Civ. Code, § 52.1, subds. (b)-(c).)

“Liability

may ... be imposed on one who aids and abets the commission of an intentional tort if the person (a) knows the other’s conduct constitutes a breach of duty

and gives substantial assistance or encouragement to the other to so act or (b) gives substantial assistance to the other in accomplishing a tortious result and the person's own conduct, separately considered, constitutes a breach of duty to the third person." (Austin B., supra, 149 Cal.App.4th at p. 879.)

The

demurrer to the Bane Act claim is sustained. While Plaintiffs allege their classmates' attacks violated their right to a public education by causing them to not attend school, they do not sufficiently allege Defendant's aiding and abetting of that conduct. At most, their allegations show that the staff knew about the alleged abuse but did not act to protect them. [Compl. ¶¶ 36-40.] This is insufficient to show that Defendant "substantially assisted" in the attacks that caused the constitutional violation. (See Austin B., supra, 149 Cal.App.4th at p. 879 [mere knowledge of abusive conduct and failure to protect plaintiffs insufficient to show aiding and abetting of battery].) Because Plaintiffs' opposition confirms that their aiding and abetting theory rests on the indirect message Defendant's inaction sent to the bullies rather than facilitation of the abuse [Opp. at p. 5], the demurrer is sustained without leave to amend. (Gerard v. Ross (1988) 204 Cal.App.3d 968, 983 ["A defendant can be held liable as a co-tortfeasor on the basis of acting in concert only if he or she knew that a tort had been, or was to be, committed, and acted with the intent of facilitating the commission of that tort"].)

Motion to Strike: Granted.

Defendant

moves to strike Plaintiffs' prayer for punitive damages. It argues that Plaintiffs fail to sufficiently allege the requisite malice or oppression to support their punitive damages claim and that the alleged wrongful conduct was committed, authorized, or ratified by a "managing agent." Plaintiffs oppose the motion, contending that they allege despicable conduct in the form of Defendant's indifference towards Plaintiffs' safety due to their race. They further argue that this conduct was "ratified" by school principal Eva Orozco who, despite notice of the abuse, allegedly did not take action. Defendant's motion is granted with leave to amend.

To

support punitive damages, the plaintiff's complaint "must allege ultimate facts of the defendant's oppression, fraud, or malice." (Cyrus v. Haveson

(1976) 65 Cal.App.3d 306, 316-17; Civ. Code, § 3294, subd. (a).) “Malice” is “conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civ. Code, § 3294, subd. (c)(1).) “Oppression” is “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (Id. § 3294, subd. (c)(2).)

An employer is not liable for punitive damages based on the actions of an employee “unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice.” (Civ. Code, § 3294, subd. (b).) “With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.” (Ibid.)

Plaintiffs

fail to adequately plead their entitlement to punitive damages. While the Court does not deny that the alleged failure of staff to protect Plaintiffs from their attackers due to their race is “despicable conduct” carried on with a conscious disregard of their rights and safety, the complaint is devoid of allegations of Orozco’s knowledge and ratification of the discriminatory conduct. Plaintiffs merely allege that Orozco was informed of the bullying. [Compl. ¶ 12.] This is insufficient to plead ratification of the discriminatory conduct by a managing agent. Because there is a reasonable possibility that Plaintiffs can amend their complaint to cure this defect, Defendant’s motion is granted with leave to amend. The prayer for punitive damages, as well as supporting allegations in paragraphs 35 and 45, are stricken. (Code Civ. Proc., § 436.)

Plaintiffs

are granted 30 days’ leave to amend. Plaintiffs may only add facts in support of the successfully challenged punitive damages claim. (Harris v. Wachovia Mortgage, FSB (2010) 185 Cal.App.4th 1018, 1023.) If Plaintiffs decline or fail to file an amended complaint, Defendant shall answer the operative complaint within 10 days of the lapsed deadline. Any new causes of action outside the scope of the order may be addressed via a motion to strike.

Defendant
to give notice.

[1]

Defendant also demurs on the ground that the duplication creates uncertainty. Because the Court concludes that the causes of action are not duplicative, the demurrer on grounds of uncertainty is overruled.